

Sources Sought Notice

SUBJECT* Courier services between OBVAMC and CBOCs

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	77056-5643
SOLICITATION NUMBER*	36C25626Q0548
RESPONSE DATE/TIME/ZONE	04-06-2026 10:00 CENTRAL TIME, CHICAGO, USA
ARCHIVE	8 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
SET-ASIDE	
PRODUCT SERVICE CODE*	R602
NAICS CODE*	492110
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs Network Contracting Office 16 Galleria Financial Center 5075 Westheimer Road, Suite 750 Houston TX 77056-5643
POINT OF CONTACT*	Contract Specialist Jeneice Matthews jeneice.matthews@va.gov

PLACE OF PERFORMANCE

ADDRESS	Overton Brooks VA Medical Center
	510 E. Stoner Ave Shreveport LA
POSTAL CODE	71101
COUNTRY	USA

ADDITIONAL INFORMATION

AGENCY'S URL	https://www.va.gov
URL DESCRIPTION	Department of Veterans Affairs
AGENCY CONTACT'S EMAIL ADDRESS	jeneice.matthews@va.gov
EMAIL DESCRIPTION	Sources 36C25626Q0548 Courier Services OBVAMC

*= Required Field

Sources Sought Notice

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DESCRIPTION

DISCLAIMER: THIS IS A SOURCES SOUGHT NOTICE ONLY. THIS IS NOT A REQUEST FOR QUOTE, PROPOSAL, OR BID

The purpose of this sources sought notice is to identify potential sources which will aid in defining the procurement strategy for example set-aside, sole source, unrestricted of a solicitation the VA intends on issuing in the near future. Please review the attached document for more details on this requirement. See attached 36C25626Q0548 and Scope of Work

Description: The Department of Veterans Affairs (VA), Overton Brooks VA Medical Center (VAMC) in Shreveport, LA is seeking information from potential vendors on their ability to provide scheduled and as-needed round-trip Courier Services. Non personal services will include transport between Overton Brooks VAMC, associated Community Based Outpatient Clinics (CBOCs), the Alexandria VAMC, and designated non-VA medical facilities within the Shreveport–Bossier metropolitan area. Contractor Courier Services must include, but are not limited to, the secure transport of pharmaceuticals, laboratory specimens, medical supplies, administrative materials, and small equipment weighing no more than 10 pounds per item. All courier trips must be round-trip, and all pricing must be fully all-inclusive as listed in the attachment.

Information Requested from Industry:

- 1) In response to the Sources Sought, interested Contractors must submit the following information and any Capabilities/Qualifications Statement to include but not limited to an overview of proposed solution(s) and must include the following information:• Company name, address, point of contact, phone number, and email• UEI number and verification of active SAM.gov registration • Business size and socioeconomic category under NAICS 492110• Detailed responses addressing: Relevant experience, Technical capability, Quality and compliance processes, Geographic coverage, Staffing and resources. Any subcontracting intentions (if applicable) your company possesses in accordance with the attached Statement of Work (draft). All interested parties shall submit clear and convincing documentation demonstrating their capability to satisfy the requirement. Capability documentation should include general information and technical background describing in detail the prospective contractor's capability and experience that will demonstrate the ability to support the requirement.
- 2) Responses to attached market research table questionnaire shall be submitted. If this information is not provided, then it will be assumed the entire requirement cannot be met.

Responses are due by 10:00 A.M. (Central Time), on April 6, 2026; size is limited to 8.5 x 11 inches, 12-point font, with 1-inch margins in Microsoft Word format or Portable Document Format (PDF) via email to jeneice.matthews@va.gov the subject line shall read: Sources Sought 36C25626Q0548 Courier Services OBVAMC. **NO SOLICITATION EXISTS AT THIS TIME.** All interested parties shall submit clear and convincing documentation demonstrating their capability to satisfy the requirement. Information provided will be used solely by Overton Brooks VAMC as “**Market Research**” and will not be released outside of the Overton Brooks VAMC Purchasing and Contracting Team.

THIS IS A SOURCES SOUGHT NOTICE ONLY. Small Business Concerns are encouraged to provide responses to the description/service in order to assist the Overton Brooks VAMC in determining potential levels of competition and general market pricing available in the industry. Therefore, vendors are requested to submit estimated market research pricing along with their responses to the above. The estimated pricing will be considered when determining the procurement strategy for the forthcoming solicitation. **THIS SOURCES SOUGHT IS NOT A SOLICITATION OR REQUEST FOR COMPETITIVE QUOTES.** The VA will NOT be responsible for any costs incurred by interested parties in responding to this sources sought notice. Any prospective contractor must be registered in the System for Award Management (SAM) to be eligible for award.

In response to this announcement, please provide the information requested below in this market research table questionnaire. If this information is not provided, then it will be assumed the entire requirement cannot be met:

NAICS Code:

Company Name:

Address:

UEI (Unique Entity ID) Number:

Contact Name:

Phone No.:

Email:

Business Size Information - Select all that applies:

- ☐ Small Business
- ☐ Emerging Small Business
- ☐ Small Disadvantaged Business
- ☐ Certified under Section 8(a) of the Small Business Act
- ☐ HUBZone
- ☐ Woman Owned
- ☐ Certified Service-Disabled Veteran Owned Small
- ☐ Veteran Owned Small Business
- ☐ Large Business

FSS/GSA Contract Holder:

Yes ☐ No ☐

FSS/GSA Contract Number:

Effective Date/ Expiration Date:

Proposed solution is listed and available on the above FSS/GSA Contract:

Yes ☐ No ☐

Available pricing structure of proposed solution (select all that are applicable below, or remove to fit your requirement):

<u>Pricing Model</u>	<u>Please Indicate Availability Below: (Yes / No / NA)</u>		
	<u>All on FSS</u>	<u>Open Market only</u>	<u>Mix of FSS & Open Market</u>
Firm-Fixed Price			

Federal Acquisition Regulation (FAR) Market Research Questions:

Buy American Act RFO 52.225-1 and RFO 52.225-2 Buy American Certificate – What percentage of the proposed product (including leases and rentals) is a:

1. Domestic end product? (%)
2. Foreign end product? (%) Country of Origin:

Questions for Small Businesses ONLY:

Limitations on Subcontracting RFO 52.219-14

1. What percentage of the work would be subcontracted to another company? _____
2. What is the business size of the subcontractor? _____

Per RFO 52.219-14 the following conditions must be met:

Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

3. If subcontracting, what added value do you offer (RFO 52.215-23):

4. Nonmanufacturer Rule (RFO 52.219-33):

- a. Does your company manufacture these proposed items? ☐ yes ☐ no
- b. Does your company exceed 500 employees? ☐ yes ☐ no If yes, list # of employees: _____
- c. Does your company primarily engaged in the retail or wholesale trade and normally sells the type of item being supplied? ☐ yes ☐ no
- d. Does your company take ownership or possession of the item(s) with its personnel, equipment or facilities in a manner consistent with industry practice? ☐ yes ☐ no
- e. Does your company supply the end item of a small business manufacturer, processor or producer made in the United States, or obtains a waiver of such requirement pursuant to paragraph (b)(5) CFR 121.406. ☐ yes ☐ no If yes, what is the manufacturer's name? _____

Response Instructions:

- 1) Do not provide more than **8 pages**, including cover letter page.
- 2) Submit your response via email to jeneice.matthews@va.gov
- 3) Submit your response **NLT 9:00am (Central Time) on Monday, April 6, 2026;**
- 4) Mark your response as **“Proprietary Information”** if the information is considered business sensitive.
- 5) VA has identified the appropriate North American Industry Classification System (NAICS) Code as 492110 – Couriers and Express Delivery Services with a Small Business size standard of 1,500 employees or fewer. Please identify and explain any NAICS codes your company believes would better represent the predominant work included in the attached Statement of Work draft.

PERFORMANCE WORK STATEMENT (PWS)

1. Background and Purpose

This is a non-personal services, firm-fixed-price (FFP) contract for courier services in support of the Department of Veterans Affairs (VA), Overton Brooks VA Medical Center (OBVAMC), Shreveport, Louisiana, associated VA Community Based Outpatient Clinics (CBOCs), Alexandria VA Medical Center, and designated non-VA medical facilities in the Shreveport–Bossier metropolitan area.

2. Scope of Services

The Contractor shall provide all personnel, supervision, equipment, vehicles, licenses, insurance, materials, and management necessary to perform scheduled and as-needed round-trip courier services between OBVAMC, three (3) CBOCs, and designated non-VA medical facilities within the defined service areas.

Courier services include, but are not limited to, the transport of pharmaceuticals, laboratory specimens, medical supplies, administrative materials, and small equipment (≤ 10 lbs. per item). All trips are round-trip and all pricing shall be all-inclusive.

Services under this contract shall be performed in accordance with:

- Applicable Federal, State, and local laws and regulations.
- VA policies and directives, including but not limited to VA privacy and information security requirements; and
- VA acquisition policy and guidance as implemented through the VA Acquisition Regulation (VAAR), VA Acquisition Manual (VAAM), VA Procurement Guidance (VHAPG), and VA Acquisition Policy Manual (VHAPM), as incorporated in the solicitation and contract.

3. Scope of Work

3.1 The Contractor shall provide round-trip courier services between OBVAMC and:

- Alexandria VA Medical Center, Pineville, LA;
- VA CBOCs in Monroe, LA; Longview, TX; and Texarkana, TX

- Non-VA medical facilities in the Shreveport–Bossier metropolitan area and within the same towns as each CBOC, as directed by the Government.

3.2 Services include both:

- Scheduled Trips: Routine, recurring round-trip routes at specified times; and
- As-Needed Trips: Non-routine, on-demand round-trip services, including STAT and non-STAT, within specified response times.

3.3 Items to be transported include, but are not limited to:

- Inter-office correspondence and administrative documents;
- Pharmaceuticals and medications;
- Medical and office supplies;
- Expendable and non-expendable commodities;
- Laboratory specimens and samples;
- Specimens will require coolers to transport and should have temperature control.
- Medical and computer equipment and other items up to 50 pounds each that can be safely secured and transported within a Contractor-provided enclosed vehicle.

3.4 Transport of furniture and large items beyond the size and weight limitations specified above is not included in this requirement.

4. Place of Performance

4.1 Primary VA Facility

- Overton Brooks VA Medical Center (OBVAMC)
510 E. Stoner Avenue
Shreveport, LA 71101

4.2 VA Medical Facilities and CBOCs

- Alexandria VA Medical Center
2495 Shreveport Highway
Pineville, LA 71360
- Texarkana VA Clinic
5700 Summerhill Road
Texarkana, TX 75503

- Monroe VA Clinic
1691 Bienville Drive
Monroe, LA 71201
- Longview VA Clinic
1005 North Eastman Road
Longview, TX 75601

4.3 Other Non-VA Medical Facilities

Non-VA medical facilities in the Shreveport–Bossier metropolitan area and local hospitals/medical facilities within approximately fifty (50) miles radius, and each CBOC may be included for pickup and delivery as directed by the COR or other authorized Government official, provided such services are within the general scope of this PWS.

5. Period of Performance

5.1 The Period of Performance (POP) under this contract shall be:

- Base Period: 1 October 2026 – 30 September 2027
- Option Period 1: 1 October 2027 – 30 September 2028
- Option Period 2: 1 October 2028 – 30 September 2029
- Option Period 3: 1 October 2029 – 30 September 2030
- Option Period 4: 1 October 2030 – 30 September 2031

5.2 Option periods may be exercised at the sole discretion of the Government, subject to continued need, satisfactory contractor performance, funding availability, and in accordance with FAR and VAAR option clauses incorporated in the contract (e.g., FAR 52.217-8 and 52.217-9, as applicable).

6. Hours of Operations and Response Time

6.1 Standard Operating Hours

Standard Operating Hours

- Scheduled services shall be provided Monday through Friday, 8:00 a.m. – 5:00 p.m. Central Time.

6.2 Federal Holidays

6.2.1 The Contractor shall provide courier services on Federal holidays when ordered by the Government, including both scheduled and as-needed trips, and shall maintain the

same performance standards and response times as during normal business days unless otherwise approved by the Contracting Officer.

6.2.2 VA observes the ten (10) Federal holidays set by 5 U.S.C. 6103, as may be amended: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day (if observed at the time of performance), Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day, including any day specifically designated by law or Executive order as a holiday or in lieu of a holiday.

6.3 As-Needed and STAT Services (24/7 Coverage)

- Non-STAT as-needed trips (weekdays, after hours, weekends, and Federal holidays):
 - Contractor shall return calls within one (1) hour of notification and arrive at the pickup location within three (3) hours of notification.
- STAT trips (anytime, including Federal holidays):
 - At a minimum, the Contractor shall meet the same 1-hour call-back and 3-hour pickup standard and is encouraged to propose more responsive, innovative solutions in its technical proposal.

6.4 All routes shall be round trip, and pricing for Federal holiday services shall be as specified in the contract price schedule (e.g., identified CLINs or rates), with no additional surcharges beyond those specifically authorized in the contract.

7. Description of Services

7.1 Scheduled Trips – OBVAMC to Local Clinics (Knight Street and Buckner Square)

7.1.1 The Contractor shall provide two daily round-trip courier runs, Monday through Friday (excluding Federal holidays), between OBVAMC and:

- Knight Street Clinic, 3000 Knight Street, Shreveport, LA;
 - ❖ Monday through Friday, excluding federal holidays. The times for these trips will be 9:30am and 2:30pm. The start of this trip will be Overton Brooks (pick-up and drop-off) for Knight Street trips is 1W25 the Mailroom, BE21 the Warehouse, and all lab specimens to be delivered to 2 North, 3 North and 2nd floor Pathology Laboratory. The pick-up, delivery, and drop-off for Knight Street is Room 57.
- Buckner Square Clinic, 1800 Buckner Street, Shreveport, LA.

- ❖ Monday through Friday excluding federal holidays. The times for these trips will be 9:30am and 2:30pm. The start of this trip will be Overton Brooks (pick-up and drop-off) pick for this trip starts 1W25 the Mailroom and BE21 Warehouse. The pick-up, delivery, and drop-off for Buckner Square is room C200 for Human Resources and room A200 for Business Office.

7.1.2 The PWS establishes required service windows (e.g., morning and afternoon runs as reflected in the resulting schedule) and origin/destination locations (Mailroom, Warehouse, Laboratory, Pharmacy, designated clinic rooms). Exact departure and arrival times may be adjusted by mutual agreement with the COR to support mission needs, provided the Contractor maintains route coverage and safety.

7.2 Scheduled Trips – OBVAMC to CBOCs and Alexandria VAMC (Monroe, Longview, Texarkana)

- Trips for Monroe, LA , Longview, TX, Texarkana, TX CBOC
 - ❖ Monday through Friday with two round trips, one in the morning at 9:30am and one trip in the afternoon at 1:15pm. Trips will start from Overton Brooks to the Community Based Outpatient Clinics (CBOCs).
 - ❖ Trips to Alexandria VA Medical Center trips will be two days a week, Tuesday and Friday. Morning trip 9:30 am leaving Overton Brooks to Alexandria VAMC. Delivery location for Alexandria Bldg. 7 Room 352, Pathology and Laboratory Medicine Service 113, 2495 Hwy 71 North, Pineville, LA 71360

7.2.1 The Contractor shall provide two daily round-trip courier runs, Monday through Friday (excluding Federal holidays), between OBVAMC and each CBOC in Monroe, Longview, and Texarkana (one morning run and one afternoon run).

7.2.2 The PWS recognizes approximate travel distances (e.g., 70–110 miles one way) and travel times; flexibility is required to account for traffic, weather, and road conditions, with driver safety taking precedence over strict schedule adherence.

7.2.3 The Contractor shall also provide additional stops, when directed, at non-VA hospitals or clinics within the same town as each CBOC (e.g., St. Francis Medical Center, Christus-St. Michael's, Good Shepherd Medical Center), using all-inclusive “extra stop” CLINs.

7.3 As-Needed Courier Services – Local Area

7.3.1 The Contractor shall provide as-needed round-trip courier services between OBVAMC and non-VA medical facilities in the Shreveport–Bossier metropolitan area as requested by the COR or authorized Government official.

7.3.2 As-needed services include both non-STAT and STAT runs during standard hours and 24/7 coverage outside standard hours, in accordance with Section 5 response time standards.

7.3.3 As-needed runs that directly support patient care (e.g., delivery of prescriptions or lab specimens) may be initiated by clinical services without prior written authorization but must be documented in trip logs for invoice verification.

8. Contractor Responsibilities

8.1 Management and Local Capability

- Maintain local management and dispatch capability in or near Shreveport, LA, sufficient to oversee day-to-day operations, respond to issues, and implement quality control.
- Designate a primary and alternate point of contact (POC) with authority to make decisions and respond to Government inquiries; management officials shall be able to be onsite at OBVAMC within four (4) business hours when requested.

8.2 Personnel

- Provide qualified drivers and support staff who can read, write, speak, and understand English.
- Ensure drivers are at least 18 years old, possess valid driver's licenses, and meet all applicable licensing requirements; the courier company shall be properly licensed to operate in the local Shreveport, LA area and all jurisdictions in which services are performed.
- Ensure all personnel conduct themselves professionally, present a neat appearance, and wear clearly visible identification badges above the waist that identify them as Contractor employees.

8.3 Vehicles and Equipment

- Provide enclosed vehicles owned or leased by the Contractor (no personal vehicles) that are properly licensed, registered, inspected, and insured, and suitable for secure transport of medical materials, PHI, and equipment.
- Ensure vehicles are clean, well-maintained, and in good mechanical condition at all times.

- Provide backup vehicles and drivers as part of a contingency plan to ensure continuous service if primary vehicles or drivers are unavailable.

8.4 Security, Privacy, and Safety

- Protect PHI and VA sensitive information in accordance with the Privacy Act, HIPAA, VA privacy policy, and all applicable information security requirements. A Business Associate Agreement (BAA) is required and shall be executed or confirmed as part of contract award.
- Comply with all VA information security requirements, including completion of VA cyber security and privacy training, Rules of Behavior, and any additional training required as a condition of access.
- Ensure drivers receive specimen handling and “dangerous goods”-type training, as required by laboratory protocols and DOT/OSHA regulations, at least annually; maintain training records and provide certificates to the CO/COR upon request.
- Ensure safe operation of vehicles at all times; scheduled times shall not be construed to require unsafe driving.

8.5 Badging and Access

- Ensure all Contractor personnel who routinely access VA facilities obtain VA identification (PIV badges or other credentials) as required; comply with VA access control, sign-in, and escort procedures.

9. Government Responsibilities

9.1 Designate a Contracting Officer’s Representative (COR) in writing, with authority to perform technical monitoring and contract surveillance, but not to make changes to the contract.

9.2 Provide access to designated pickup and delivery locations, loading docks, and parking areas consistent with OBVAMC and CBOC procedures.

9.3 Review and certify invoices based on verified services and performance against the QASP.

10. Documentation, Chain of Custody, and Invoicing Support

10.1 The Contractor must have a delivery system portal. The portal must be able to send and receive messages from government personnel to contractor.

10.2 The Contractor shall maintain trip tickets/logs for all runs, including at a minimum: date, time, origin, destination, route type (scheduled/as-needed/STAT), and items transported.

10.3 The Contractor shall maintain chain-of-custody documentation for laboratory specimens, pharmaceuticals, and other sensitive items as required by VA policy and receiving laboratories.

10.4 Drivers shall obtain signatures from designated VA personnel at pickup and delivery points as required to document custody transfer; trip tickets shall be provided to VA personnel upon request.

10.5 The Contractor shall provide all records reasonably requested by the CO/COR to support invoice verification and performance monitoring.

11. Invoicing and Payment

11.1 The Contractor shall submit invoices monthly in arrears (or in accordance with the contract schedule) to the address designated in the contract, in compliance with VA electronic invoicing requirements (e.g., Tungsten/ IPP, if applicable).

11.2 Invoices shall, at a minimum, reference:

- Contract and order number;
- Period of performance covered;
- CLINs, quantities, and rates consistent with the contract price schedule;
- Sufficient detail (e.g., number of trips/stops) to allow verification against COR records.

11.3 The Government will only pay for actual, verified trips and stops, up to the funded and obligated amounts and consistent with the minimum and maximum quantities described in the contract schedule.

12. Subcontracting

12.1 The Contractor shall identify any subcontractors used in performance and shall ensure that all subcontractors meet the same qualification, licensing, security, privacy, and training requirements as the prime Contractor.

12.2 The Contractor remains fully responsible for subcontractor performance and compliance with all contract terms.

13. Small Business and VA Rule of Two

13.1 This requirement is intended to be fulfilled, to the maximum extent practicable, through competition that implements VA's Veterans First Contracting Program and the VA Rule of Two, consistent with VAAR and VAAM market research and set-aside procedures. The specific set-aside determination (e.g., SDVOSB/VOSB) is addressed in the acquisition plan and solicitation and is not altered by this PWS

14. Security Clauses

1. GENERAL. This entire section applies to all acquisitions requiring any Information Security and Privacy language. Contractors, contractor personnel, subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.

2. VA INFORMATION CUSTODIAL LANGUAGE. This entire section applies to all acquisitions requiring any Information Security and Privacy language. a. The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter "contract") unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*. The primary clause used to define computer software license (not data/intellectual property first produced under this contractor or order) is FAR 52.227-19, *Commercial Computer Software License*.

b. Information made available to the contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*.

c. VA information will not be co-mingled with any other data on the contractor's information systems or media storage systems. The contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.

d. VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of contractor Information Technology (IT) resources to ensure information

security is compliant with Federal and VA requirements. The contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to contractor and subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

e. The contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.

f. The contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.

g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.

h. The contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.

i. The contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.

j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after

notification to VA CO (ii) with written approval from the VA CO. The contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.

k. Notwithstanding the provision above, the contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality-assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the contractor is in receipt of a court order or other requests for the above-mentioned information, the contractor shall immediately refer such court order or other requests to the VA CO for response.

l. Information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.

m. Any data destruction done on behalf of VA by a contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.

n. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, *Guidelines for Media Sanitization* prior to termination or completion of this contract. If directed by the COR/CO, the contractor shall return all Federal Records to VA for disposition.

o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.

p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS. This section applies when any person requires access to information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract.

a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees and subcontractors only to the extent necessary to perform the services specified in the solicitation or contract. This includes indirect entities, both affiliate of contractor/subcontractor and agent of contractor/subcontractor.

b. Contractors and subcontractors shall sign the VA Information Security Rule of Behavior (ROB) before access is provided to VA information and information systems (see Section 4, Training, below). The ROB contains the minimum user compliance requirements and does not supersede any policies of VA facilities or other agency components which provide higher levels of protection to VA's information or information systems. Users who require privileged access shall complete the VA elevated privilege access request processes before privileged access is granted.

c. All contractors and subcontractors working with VA information are subject to the same security investigative and clearance requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors shall be in accordance with VA Directive and Handbook 0710, *Personnel Suitability and Security Program*. The Office of Human Resources and Administration/Operations, Security and Preparedness (HRA/OSP) is responsible for these policies and procedures. Contract personnel who require access to classified information or information systems shall have an appropriate security clearance. Verification of a Security Clearance shall be processed through the Special Security Officer located in HRA/OSP. Contractors shall conform to all requirements stated in the National Industrial Security Program Operating Manual (NISPOM).

d. All contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All contractors and subcontractors working with VA information must be permanently located within a

jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the contractor must state where all non-U.S. services are provided. The contractor shall deliver to VA a detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.

e. The contractor shall notify the COR/CO in writing immediately (no later than 24 hours) after personnel separation or occurrence of other causes. Causes may include the following:

(1) Contractor/subcontractor personnel no longer has a need for access to VA information or VA information systems.

(2) Contractor/subcontractor personnel are terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.

(3) Contractor believes their own personnel or subcontractor personnel may pose a threat to their company's working environment or to any company-owned property. This includes contractor-owned assets, buildings, confidential data, customers, employees, networks, systems, trade secrets and/or VA data.

(4) Any previously undisclosed changes to contractor/subcontractor background history are brought to light, including but not limited to changes to background investigation or employee record.

(5) Contractor/subcontractor personnel have their authorization to work in the United States revoked.

(6) Agreement by which contractor provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and/or physical access for contractor personnel.

f. In such cases of contract fulfillment, termination, or other causes; the contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by contractor/subcontractor personnel. These measures include (but are not limited to): removing and then securing Personal Identity Verification (PIV) badges and PIV – Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA-issued laptops, and authentication tokens. Contractors shall notify the appropriate VA COR/CO immediately to initiate access removal.

g. Contractors/subcontractors who no longer require VA accesses will return VA-issued property to VA. This property includes (but is not limited to): documents, electronic equipment, keys, and parking passes. PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, contractors shall notify the appropriate VA COR/CO.

4. TRAINING. This entire section applies to all acquisitions which include section 3. a. All contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:

(1) VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.

(2) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and

(3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role-based information security training].

b. The contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.

c. Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

5. SECURITY INCIDENT INVESTIGATION. This entire section applies to all acquisitions requiring any Information Security and Privacy language.

a. The contractor, subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the

contractor, subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD.

b. To the extent known by the contractor/subcontractor, the contractor/subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:

- (1) The date and time (or approximation of) the Security Incident occurred.
- (2) The names of individuals involved (when applicable).
- (3) The physical and logical (if applicable) location of the incident.
- (4) Why the Security Incident took place (i.e., catalyst for the failure).
- (5) The amount of data belonging to VA believed to have been compromised.

(6) The remediation measures the contractor is taking to ensure no future incidents of a similar nature.

c. After the contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The contractor, subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.

d. VA IT contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.

e. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

f. The contractor shall comply with VA Handbook 6500.2, *Management of Breaches Involving Sensitive Personal Information*, which establishes the breach management

policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.

g. With respect to unsecured Protected Health Information (PHI), the contractor is deemed to have discovered a data breach when the contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.

h. If the contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the contractor/subcontractor processes or maintains under the contract; the contractor shall pay liquidated damages to the VA as set forth in clause 852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs.

15.Changes

15.1 Only the Contracting Officer has authority to modify the contract. Any changes to routes, scope, or performance requirements that affect price, quantity, or terms must be made by written modification signed by the CO and the Contractor. Instructions from VA personnel other than the CO that change the scope or cost are not binding.